



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority
Date: September 23, 2024

The item for consideration is a Memorandum of Understanding between the City and the Downtown Development Authority (DDA).

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: September 23, 2024
- Finance Committee: October 7, 2024
- Final consideration: October 14, 2024

The purpose of this MOU is to coordinate to the repair of sidewalks identified as trip hazards by the City Engineer's office and to allow the City to receive reimbursement for all sidewalk repairs made by the City's contractor. Reimbursement to the City will come from the Downtown Development Authority (DDA) and the property owner at a 50:50 ratio. Pursuant to Cheyenne City Code 12.04.120.b the City will be responsible for any curb and gutter repair associated with a sidewalk reconstruction. Responsibilities outlined in the MOU are summarized below.

DDA Responsibilities:

- Property owner notification on behalf of the City Engineer.
- Collect payment from affected property owners in advance of work and relay payment to the City for services.
- Coordinate with the City's contractor the timing repairs to minimize business impact.
- Coordinate the project with the City.

City Responsibilities:

- Follow its procurement policy to identify as contractor qualified to make sidewalk, curb, and gutter repairs.
- Contract with a contractor to complete repairs to curbs, gutters, and sidewalks in problem areas.
- Seek reimbursement from the DDA for the cost of the repairs made (Not to exceed the DDA's \$100,000 budget allocation).

At the time of preparation of this memo, the DDA Board had not considered this MOU. The MOU will be reviewed by the DDA Board at their September 19, 2024, meeting. An update and any necessary substitute MOU will be provided at the September 23, 2024, Finance Committee meeting.

**MEMORANDUM OF UNDERSTANDING
BETWEEN
THE CITY OF CHEYENNE AND THE DOWNTOWN DEVELOPMENT AUTHORITY**

This Memorandum of Understanding (MOU) is by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the “City”, and the Cheyenne Downtown Development Authority, a political subdivision organized and operating under the laws of the State of Wyoming, located 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the “DDA.” The City and the DDA are individually or collectively referred to as “Party” or “Parties.”

WHEREAS, within the DDA District, as defined by Section 2.76.040 of the Cheyenne City Code, several sections of sidewalk create trip hazards and are in need of repair;

WHEREAS, property owners owe a general duty to maintain their property, including adjacent sidewalks, in a reasonably safe condition;

WHEREAS, it is the legal responsibility of the property owner to maintain sidewalks adjacent to their property under Sections 12.04.040 and 12.04.200 of the Cheyenne City Code;

WHEREAS, Section 12.04.120(B) provides a special provision for the Downtown Development District properties relative to the repair or replacement of deteriorated curbs, gutters and sidewalks. This section provides in part that upon notification to a property owner by the City that the sidewalk abutting the owner’s property is in such a state of disrepair and/or noncompliance with current ADA standards that it poses a public safety hazard or an obstruction to pedestrian mobility, and that the repair or replacement of the sidewalk by the property owner is required, the property owner is not required to reconstruct or repair the abutting curb and gutter. This section further provides that curb and gutter repairs in the downtown development

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district may be completed by the City at its expense upon the request of a property owner who has replaced the sidewalk abutting his or her property;

WHEREAS, the DDA District is the heart of the community and the center of tourism for the City of Cheyenne and public safety is a primary concern for the DDA;

WHEREAS, on March 11, 2024, the Governing Body of the City of Cheyenne unanimously adopted Resolution No. 6391 supporting a sidewalk project in downtown Cheyenne. The intent of the Resolution was to create action plan to address deficiencies specific sidewalks in the downtown development district and to assist property owners in funding the necessary sidewalk repairs;

WHEREAS, Resolution No. 6391 required that all City departments be responsible for identifying sidewalk problems within the DDA District and to coordinate on a program for the identification, notification, and citation of trip hazards on sidewalks;

WHEREAS, on March 21, 2024, DDA staff provided Resolution No. 6391 to the DDA Board for consideration. Thereafter, the DDA Board created a subcommittee comprised of Janelle Rose, Danica Mrozinsky, Brian Bau, Scott Roybal and Pete Laybourn;

WHEREAS, on April 8, 2024, DDA staff met with the subcommittee members Scott Roybal, Janelle Rose, Danica Mrozinsky, and Brian Bau to discuss program framework and funding levels;

WHEREAS, the subcommittee recognized that this program should be implemented in coordination with the City Engineer's implementation of the project and that the DDA's role in the program would be complimentary to the City, based on a property owner reaching out to the DDA for utilization of the sidewalk grant program, and that the DDA would not be managing any aspects of the program;

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WHEREAS, the City Engineer's office has reviewed ADA guidelines and has reviewed the recommendations of the 2014 Benchmark Engineering Report;

WHEREAS, the parties agree that the DDA shall manage the notification of, and payments by, property owners on behalf of the City Engineer, and that the City Engineer's Office shall manage the sidewalk, curb, and gutter repairs under the program in accordance with established policies and procedures;

WHEREAS, the City Engineer's Office and the DDA have created a program to identify sidewalks in need of repair and remediation and in so doing, the parties have identified three (3) areas within the DDA District where trip hazards on sidewalks are significant;

WHEREAS, some of the repairs may be interim in nature to minimize immediate safety hazards and additional measures may be required in the future;

WHEREAS, the City will enter into agreements with one (1) or more a contractors, as deemed appropriate to repair sidewalks in areas identified by the City Engineer's office;

WHEREAS, the City's miscellaneous concrete program funding has been considered to assist DDA property owners in funding curb and gutter repairs;

WHEREAS, DDA staff have considered DDA Capital Improvement Grant (CIG) funding and have determined that that grant program is not an appropriate funding source. Notwithstanding, the DDA has designated up to one hundred thousand dollars (\$100,000) in its budget to fund sidewalk repairs;

WHEREAS, DDA staff will work with property owners to fund fifty (50%) of sidewalk repairs and will work with property owners to fund attendant curb and gutter repair ; and,

WHEREAS, City departments will continue to coordinate with the DDA to identify any other sidewalk necessary repairs.

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NOW, THEREFORE, the Parties agree as follows:

1. **Purpose.** The purpose of this MOU is for the City and the DDA to coordinate for the repair of the sidewalks identified as trip hazards by the City Engineer's Office, the necessary repair of curb and gutter associated with the sidewalk repairs, and to receive appropriate reimbursement for all sidewalk repairs made by the City's contractor.

2. **Term.** This MOU shall commence on the date last executed by the duly authorized representative of each party to this MOU and shall remain in full force until terminated as provided herein.

3. **Payments.** The DDA will reimburse the City for its costs in completing the sidewalk repairs in the specified locations in an amount not to exceed one hundred thousand dollars (\$100,000).

4. **Responsibilities of the Downtown Development Authority ("DDA").** The DDA shall:

- a. Provide notice to identified property owners of the program and their fiscal responsibility if they elect not to participate in this program, as per Cheyenne City Code.
- b. Be responsible for securing payment from property owners for their portion of the cost of these repairs prior to commencement of work.
- c. Reimburse the City for the actual cost of sidewalk repairs made by any contractor under the program in a total amount not to exceed one hundred thousand dollars (\$100,000).

d. Coordinate with the City's contractor regarding the timing of any sidewalk repairs so as to avoid any disruption to business operations if possible.

e. Coordinate with the City regarding the project as a whole.

5. Responsibilities of the City. The City shall:

a. Follow its procurement policy to identify contractors qualified to make sidewalk, curb, and gutter repairs under its applicable policies and procedures.

b. Enter into a contract with any selected contractor for the repair of curb, gutter, and sidewalks in areas identified by the City Engineer's office.

c. Inspect and accept public improvement constructed under the provisions of this program.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed, and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. The DDA agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the DDA's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by: (1) the DDA's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the DDA, or its employees, in the performance of this Agreement. The DDA acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses

available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled

by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

[SIGNATURES ON FOLLOWING PAGE]

7. **Signatures.** In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

City of Cheyenne

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

DDA Board

Date

By:

Scott Roybal,
Board President

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